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Tentative Ruling

Re: ***Espino v. Forty Niners Stadium Management Company, LLC***
Superior Court Case No. 25CECG05376

Hearing Date: June 30, 2026 (Dept. 501)

Motion: by Defendant to Transfer Venue

Tentative Ruling:

To grant Defendant Forty Niners Stadium Management Company, LLC's motion to transfer venue to Santa Clara County Superior Court. (Code Civ. Proc., § 397, subd. (a).)

Explanation:

On timely motion, the court must order a transfer of an action "when the court designated in the complaint is not the proper court." (Code Civ. Proc., §§ 396, subd. (b), 397, subd. (a).) The burden is on the moving party to establish whatever facts are needed to justify transfer. Normally this requires affidavits or declarations containing admissible evidence. But the court may also consider facts alleged in the moving party's verified complaint if uncontroverted by opposing affidavits. (*Mission Imports, Inc. v. Superior Court* (1982) 31 Cal.3d 921, 929.)

Under Code of Civil Procedure section 395, subdivision (a), "[i]f the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs ... or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

Here, plaintiff Edgar Salazar Espino is bringing an action alleging violations of his civil rights, battery, and negligence and plaintiffs Ailynn Alessandra Martinez and minors Ailynn Marie Espino and Edgar Elijah Espino are bringing related claims for negligent infliction of emotional distress. (See FAC generally.) The incident giving rise to plaintiffs' damages is alleged to have occurred at Levi's Stadium in Santa Clara, California. (FAC, ¶ 9.)

Defendant Forty Niners Stadium Management Company, LLC moves for an order transferring this action to Santa Clara County. As alleged in the First Amended Complaint, the incident giving rise to the plaintiffs' damages occurred in Santa Clara, California located in Santa Clara County. Further, defendant Forty Niners Stadium Management Company, LLC has its principal place of business located in Santa Clara, California. (RJN,

Ex. A².) Defendant has met its burden to show the proper venue for the action is Santa Clara County. Defendant is entitled to have the action tried in Santa Clara County.

Plaintiffs have not opposed the motion.

Accordingly, the court intends to grant the motion to transfer venue to Santa Clara County.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on -6/29/26
(Judge's initials) (Date)

² Defendant's Request for Judicial Notice of its Statement of Information filed with the California Secretary of State is granted.